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Confronting trade-offs and interactive effects in the choice of policy focus: Specialized versus comprehensive private governance

Graeme Auld

School of Public Policy and Administration, Carleton University, Ottawa, ON, Canada

Abstract

In setting standards for responsible business practices, certification programs create issue boundaries delineated by the focus of their standards. These issue boundaries may impede action on certain causes of problems (i.e. problem interactive effects) or lead to policy actions that affect other governance initiatives (i.e. policy interactive effects). When these interactions are extensive, programs confront trade-offs: develop as a comprehensive program (i.e. have a broad policy focus) and take on higher internal administrative costs, or develop as a specialized program (i.e. have a narrow policy focus) and undertake to develop mechanisms to facilitate across-program coordination. This paper explores these trade-offs. It examines the origins of the different policy foci of coffee, forest, and fisheries certification programs, and identifies five strategies that programs are currently using to manage policy and/or problem interactive effects. Then, informed by research in public administration and international relations, it details additional approaches for improving issue-boundary management.

Keywords: certification, environmental governance, institutional design, interactive effects, private governance.

1. Introduction

Certification programs – formed and run by non-state actors – are becoming potential sources of global regulation for many social and environmental problems. Issuing standards for responsible practices in various economic sectors, these programs attempt to generate market benefits for those operators that voluntarily participate and pass an independent inspection audit (cf. Bartley 2007b). By some accounts, certification represents a geographically unrestricted means of governance matched to the supply-chain-centered organization of global markets (Bernstein & Cashore 2007; Tollefson *et al.* 2008). Yet they are not free of limits. Each program chooses a scope of issues to address and a domain of actors to regulate. Thus, while they may avoid interstate cooperation problems, they simultaneously engender issue boundaries.

A division of labor that permits focusing on one of many environmental or social problems may enhance effectiveness. Equally, however, issue boundaries at the margin or intersection of certification programs may: impede effective attention to certain causes of problems (i.e. problem interactive effects); or lead to policy actions by one program that affect other programs, and vice versa (i.e. policy interactive effects). Hence, if problem and policy interactions across

Correspondence: Graeme Auld, School of Public Policy and Administration, Carleton University, 5206 River Building, 1125 Colonel By Drive, Ottawa, ON, Canada K1S5B6. Email: graeme_auld@carleton.ca

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these boundaries are extensive, programs will face critical trade-offs when deciding between a comprehensive and a specialized focus. A specialized program focusing on a narrow problem will face reduced administrative costs, but may neglect problem and/or policy interactive effects. Managing these issues may then require working with other programs, creating coordination costs. A comprehensive program focusing on many issues, by contrast, will better handle problem interactions and avoid policy interactive effects. Yet it will face higher internal administrative costs.

This paper examines these trade-offs by asking three questions, two positive and one normative. Why do certification programs adopt a given policy focus? What strategies are programs using to overcome the challenges their issue boundaries present? And finally, what additional strategies could be used to help improve the management of these boundaries?

The analysis traces the origins of programs' choices of policy foci to the different institutional constraints and characters, capabilities, and preferences of program founders. It then identifies five strategies that programs are currently using to manage policy and/or problem interactive effects, moving from unilateral strategies to those that involve considerable across-program coordination. The situation confronting private governance parallels similar challenges for international organizations and public bureaucracies. Drawing particularly on Oberthür's (2009) work on managing the interplay among international institutions, the paper identifies direct and indirect mechanisms for autonomous interplay management wherein governments, civil society organizations, businesses, and other actors may assist in managing issue-boundary challenges. Finally, the analysis considers how the early governance designs of certification programs may be subject to path dependence and finds that certification programs are collectively managing issue boundaries in a way that appears to mitigate potential path dependence on the narrow concern of policy focus.

A key contribution of the analysis is to distinguish interactions between programs with similar policy foci from interactions between programs with dissimilar policy foci (cf. Eberlein *et al.* 2014). Previous research has focused considerable attention on the former – competitive interactions among programs focused on a similar policy issue (e.g. Overdevest 2010) – where coordination may lead a program with higher standards to water them down (Humphreys 2006; Raynolds *et al.* 2007). A focus on interactions between programs with different policy foci highlights another side of program-to-program relations, one where coordination, rather than competition, may prove beneficial from a problem-oriented perspective.

The empirics for the study are coffee, forest, and fisheries certification programs, some of which have existed for upwards of 20 years. The analysis is based on research interviews with program developers and managers from the three sectors, as well as an examination of primary and secondary documents. The importance of coordination emerged from a broader study of the institutional evolution of certification programs and the potential path-dependent effects of early design choices (see Auld 2009). Building from this study, the paper presents an inductive analysis of how programs are confronting the problem of coordination and, informed by existing theories, how coordination might be improved. By examining the policy focus of programs – a variable thus far given limited attention – the analysis to follow contributes to work assessing the independent and intersecting effects of certification initiatives (e.g. Gulbrandsen 2009; Marx & Cuypers 2010).

The analysis proceeds in three parts. First, it reviews the emergence of private governance and certification initiatives, explains the relevance of issue boundaries as a factor shaping the effects of certification programs, and describes the trade-off between specialization and comprehensiveness that programs face when choosing a policy focus. Second, it examines two

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possible explanations for the choice of policy focus taken by different certification programs and identifies and discusses five strategies that initiatives are using to manage specific issue-boundary challenges. Turning to its final question, the paper offers recommendations on how to manage future program interactions.

2. The problem-oriented effects of policy focus within private governance

The realm of private governance has broadened immensely in recent decades, with numerous codes of conduct, self-regulatory programs, and private–private partnerships forming to govern the environmental and ethical impacts of business activities (Vogel 2008; Utting *et al.* 2012). Although linked to the deregulation and privatization agenda of neoliberalism seen to undercut the state, Levi-Faur (2005) notes that this agenda has, in fact, spurred reregulation, creating what he terms "regulatory capitalism." Rather than fewer rules, dense networks of interlocking regulation – public and private – are now in play. These form the justification for increased scholarly attention to how policy mixes (Gunningham & Grabosky 1998), activity clusters (Hoffmann 2011), and regime complexes (Alter & Meunier 2009) operate to address policy problems at multiple scales.

In the field of private initiatives, non-state certification programs (hereafter certification programs) have become a focal point of interest (e.g. Bartley 2007b; Bernstein & Cashore 2007). These initiatives comprise four key features. First, they have logos or labels that can be used on products sold to end-consumers. Second, they have some form of inspection and monitoring, which may have begun as an internal process, but over time typically becomes a third-party verification process. Third, they have governance structures and procedures for overseeing operations, including rules for membership, decisionmaking, setting and revising standards, accrediting auditors, and resolving disputes. Finally, and most relevant to this paper, the programs have standards regulating social and/or environmental impacts of production processes, as well as tracking requirements for following products through to the end-consumer. The *policy focus* of these certification standards has two components: program *scope*, which is defined as the substantive policy problems a program regulates; and program *domain*, defined as the group of economic actors in a supply chain that the program's rules target.[1]

Certification programs have galvanized interest in part for the contribution they might make to the formation of a nascent global public domain (Ruggie 2004; Bernstein & Cashore 2007). A world of autonomous, sovereign states poses challenges for environmental and social problems. Because these problems can cross national boundaries or feed off inter-state competition for capital investments and job creation, states need to cooperate to address them (Young 1999). Certification programs are seen as potentially powerful tools to address such global problems, less encumbered by the geographic restrictions of the state system (Cashore 2002). However, the policy focus chosen by certification programs creates new boundaries – those defined by the respective policy foci of different certification programs – and these new boundaries have possible problem-oriented effects.

2.1. The problem-oriented effects of issue boundaries

Four broad variables have received attention by research on the adoption of and compliance with certification rules. First, market demand is seen as critical. Because certification programs are voluntary, unless there is some economic reason for an operator to participate, the ability of certification to do more than differentiate operators already practicing responsibly is considered

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a challenge (Cashore *et al.* 2007; Gulbrandsen 2010). Explanatory work has examined: the role of NGO targeting campaigns in securing commitments from large corporate buyers to leverage demands for certification up global supply chains (Sasser *et al.* 2006); the role of US foundations in organizing and funding these NGO campaigns (Bartley 2007a); and the possible role of demand from end consumers (e.g. Loureiro *et al.* 2003).

Second, considerable attention is given to the stringency of the certification rules (McDermott *et al.* 2008; Fransen 2011). The premise here is that stringent rules have positive effects, and that these are going to be costly for operators to meet, which means control measures are needed to ensure compliance and effectiveness. Hence, stringency can broadly be seen to encompass the character of certification rules and the procedures in place to ensure operator compliance. Explanatory work explores why some programs adopt stringent rules; several studies note that those programs controlled or originated by business have less stringent requirements (Cashore *et al.* 2004; Gulbrandsen 2010; Fransen 2011). Other studies examine why the mechanism of third party certification has emerged in different sectors (e.g. Bartley 2007b).

Third, scholars have examined supply-side factors, particularly the uneven capabilities of operators seeking certification. Here the idea is that not all operators will have equal abilities to meet voluntary standards. Research has shown a skew in certification participation toward larger, vertically integrated operators that face higher – and enforced – government standards (Cashore *et al.* 2006). Links to international networks of NGOs, funders, and foundations also matter, as these connections can help operators overcome barriers to entry, including audit costs and technical know-how (Pattberg 2006). Additionally, the fit of the production practices in a region with certification requirements affects compliance costs. For instance, a history of shade-grown coffee as compared to sun-coffee (Mas & Dietsch 2004) or a history of organized cooperatives (Nigh 1997) each make it easier for coffee growers to participate in bird-friendly and fair trade certification, respectively.

Finally, regulatory competition among certification initiatives has been examined to determine whether this promotes a race to the top, middle, or bottom. Perspectives on the effects of competition vary. Overdevest (2010) shows how competitive benchmarking has led to an increase in the standards of producer-backed programs in the forest sector. Others point to downward pressure on standards as a consequence of competition (e.g. Raynolds *et al.* 2007; Bitzer *et al.* 2008).

Current work, however, pays little attention to the problem-oriented implications of the boundaries created by the policy focus of certification initiatives (for exceptions, see Visseren-Hamakers & Glasbergen 2007; Bitzer *et al.* 2008). This paper argues that this variable deserves more attention. It is particularly important because environmental and social problems are not only transboundary; they are also complex, multifaceted, and interrelated with social and ecological systems, which are often coupled in ways difficult for policy to capture.

2.2. The specialization–comprehensiveness trade-offs

One way to understand the implications of a policy focus is by considering the trade-offs between specialization and comprehensiveness. Specialization has costs and benefits. Optimizing across a range of policy objectives can lead to unanticipated trade-offs and compromises that may systematically harm a particular aim. Specialization can also help agencies or departments build needed expertise to competently address specific issues. However, when coordination to address a larger problem arises, the issue boundaries of specialized programs become sites for conflict (Grumbine 1991; Kavanagh & Richards 2001; Christensen & Lægreid 2007).

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Research in public administration reveals the policymaking challenge presented by formal boundaries among bureaucratic agencies and departments. It finds that interactions and information flows within agencies or departments are more likely to occur than flows across their boundaries (Egeberg 1999). Indeed, the issue of coordination across boundaries is a broad challenge not limited to countries' territorial or geographic borders or to inter-departmental bickering. Egeberg (1994), drawing on the work of Hammond (1986) and Gulick (1937), argues that no hierarchy is neutral. Rather, the organizing principle for a set of interacting hierarchies, be it geography (e.g. countries in the international system), sector (e.g. government departments focused on sectors such as energy or fisheries), or function (e.g. a department of justice or regulatory agencies), affects the types of conflicts that will be dealt with by the governance system as a whole (Egeberg 2003). For any problem-oriented institution, therefore, questions of fit become immediately relevant and will hinge notably on how a given problem is identified, understood, and framed (Pal 2001; Young 2002, pp. 20–22, 113).

These insights about the challenges created by boundaries highlight the importance of two types of interactive effects. First, *problem interactive* effects exist where two problems are interrelated. Forest degradation is often driven by agricultural activities; hence, to address forest issues, agricultural activities require attention (Curran *et al.* 2004). Dealing with traffic congestion is interlinked with environmental and human health concerns, as city, road, and transit design affects whether citizens will walk, ride, or bus to work and the extent to which ground level air pollution becomes a health problem. Climate change, as a policy problem, is replete with interactions, as changes in the frequency and intensity of storms, temperature variability, and ocean acidity, for instance, have implications for agriculture production, fisheries, city infrastructure, and the insurance industry. Problem interactions capture couplings among social, economic, and political processes that make disentangling problems into independent parts difficult, if not impossible.

Second, *policy interactive* effects exist where a policy response to a given problem affects the policy responses to other problems.[2] These can be positive or negative. Many scholars examine interactions between national policies – for instance, the interactions of different countries' Internet regulations (Goldsmith 2000) – but this is also relevant across policy issue areas – for instance, increased security measures to address the threat of terrorism and how these affect immigration policy (Pump 2011) or a pollution tax that facilitates the lowering of distortionary taxes but maintains government revenues through a revenue recycling effect (Goulder *et al.* 1997). The rules of the World Trade Organization (WTO), particularly those affecting policies that national governments set on process-related concerns, are an example of a policy interactive effect that limits domestic policy options on environmental and social issues (Kysar 2004); WTO requirements against discriminating in favor of domestic goods or the goods of certain countries over others (i.e. the most-favored nation treatment), can also limit the feasibility of using trade sanctions to enforce multilateral environmental agreements (Oberthür 2009).

Given these effects, the specialization–comprehensiveness trade-off creates a dilemma for certification decisionmakers. On the one hand, a program that chooses to specialize and focus on a narrow problem will face reduced administrative costs, but may neglect important problem interactive effects, and potentially even create policy interactive effects for other governance initiatives. To manage these problems, therefore, specialized programs will have to coordinate their activities with other specialized programs, or they will need to develop duplicative structures to mitigate the extra-sectoral causes of the problems occurring for their specialized policy focus. On the other hand, a program taking a comprehensive approach will be better able to

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manage complex, across-problem interactions and to address potential policy interactive effects. At the same time, its administrative costs will rise.[3]

Figure 1 captures this trade-off, illustrating how the degree of problem and/or policy interactive effects influence the problem fit of specialized and comprehensive programs. This degree of fit has implications for the internal administrative costs and across-program coordination costs we can expect to observe. Internal administrative costs are defined as the "costs of organizing resources" within a certification program to get things done; across-program coordination costs are defined as "the anticipated organizational complexity of decomposing tasks among partners along with ongoing coordination activities to be completed jointly or individually across organizational boundaries and the related extent of communication and decisions that would be necessary" (Gulati & Singh 1998, p. 782). In quadrant A, low levels of problem and policy interactive effects mean specialized programs are closely fit with the character of the problem and, hence, will face few internal administrative costs and low across-program coordination costs. By contrast, comprehensive programs in quadrant B are a poorer fit given the limited problem and policy interactive effects. Quadrant C captures cases with high problem and/or policy interactive effects. For this case, comprehensive programs will face high internal administrative costs, but they will fit well the character of the problem. Quadrant D, by comparison, represents the case where specialized programs will face high across-program coordination costs in order to address the high problem and/or policy interactive effects.

The relationships captured in Figure 1 imply that specialized programs are appropriate in instances where the level of potential problem and/or policy interactive effects is low and when the costs of coordinating across programs are lower than the administrative costs involved in establishing and running a comprehensive program.

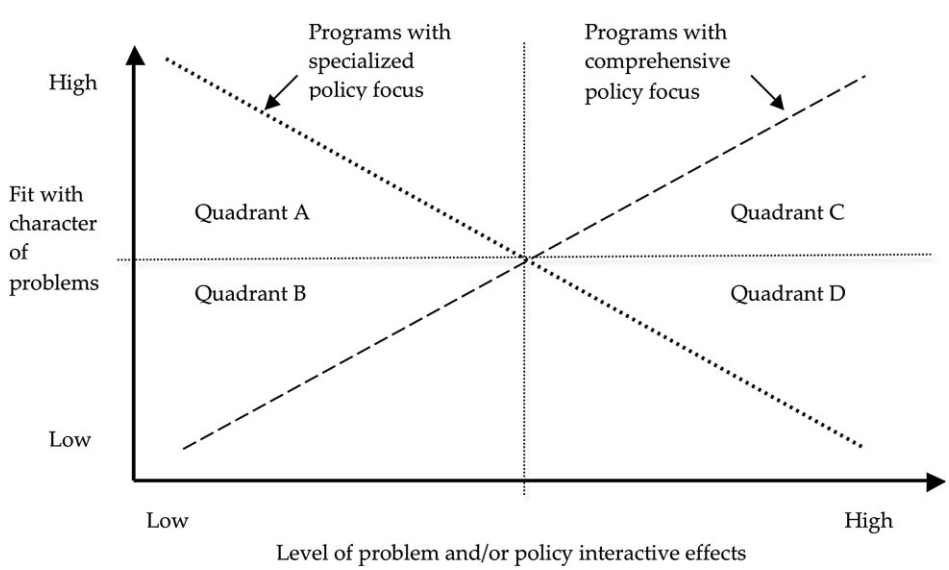

Figure 1 Conceptual model for the fit of programs with specialized versus comprehensive policy foci to the character of the problem based on levels of problem and/or policy interactive effects.

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3. Choosing boundaries and managing their consequences

Why do certification programs adopt a given policy focus? What strategies are programs using to overcome the challenges their issue boundaries present? This section examines these questions, building from the discussion above.

3.1. Explaining design choices of non-state certification

Table 1 reviews the 12 programs that currently operate in the coffee, forest, and fishery sectors. It details the choice of policy focus, that is, which actors programs regulate (domain) and what policy issues they address (scope).

There are several important differences across the programs. First, a few programs started with a focus on social justice and development issues, while others focused more explicitly on

Table 1 Scope and domain of forest, fisheries, and coffee certification programs

Programs (established)	Scope of standard	Domain of regulated actors
IFOAM (1972)	Initially environmental impacts of coffee production (emphasis on soil conservation); added social issues later	No restrictions within sectors where a standard has been developed
Utz (1997)	Good coffee practices, including food safety quality control, environment and human health	No restrictions within sector
RA (1987)	Ecological, social, and environmental impacts of coffee production	No restrictions within sector
SMBC (1990)	Impacts of coffee production on tropical forest ecosystems	Must also be organic certified
FLO (1997)	Initially economic and social development for small cooperatives; added environmental issues later	Restricted to small cooperatives for coffee; open to all sizes of operators for other crops.
FSC (1994)	Social and environmental impacts of forest management practices	Commercial forest management operations
PEFC† (1999)	Social and environmental impacts of forest management practices	Commercial forest management operations
MSC (1997)	Environmental impacts of fishing practices	Capture fisheries; not aquaculture
GAA (1997)	Environmental impacts of aquaculture practices	Only aquaculture
Global GAP (1997)	Food safety and quality with some attention to environment and labor practices	Only aquaculture
FoS (2006)	Environmental impact of seafood production	Capture fisheries and aquaculture
ASC (2009)	Environmental and social impacts of aquaculture	Only aquaculture

†Note that the PEFC includes other producer-backed programs including the Sustainable Forestry Initiative and the Canadian Standards Association program.

ASC, Aquaculture Stewardship Council.; FLO, Fairtrade Labelling Organizations International; FoS, Friend of the Sea; FSC, Forest Stewardship Council; GAA, Global Aquaculture Alliance; Global GAP, Global Good Agricultural Practice; IFOAM, International Federation of Organic Agriculture Movements; MSC, Marine Stewardship Council; PEFC, Program for the Endorsement of Forest Certification; RA, Rainforest Alliance; SMBC, Smithsonian Migratory Bird Center.

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environmental impacts. Still others formed to pay greater attention to food safety. The Fairtrade Labelling Organizations International (FLO) falls in the first category, whereas the International Federation of Organic Agriculture Movements (IFOAM) and Marine Stewardship Council (MSC) fall in the second category. The Global Good Agricultural Practice (Global GAP) initiative exemplifies the final category. Some programs have expanded to consider more issues; both FLO and IFOAM expanded their respective scopes to encompass both social and environmental concerns. Others have not. The MSC, for instance, maintains its original focus. Second, MSC, the Global Aquaculture Alliance (GAA), and FLO stand out for choosing to restrict the domain of their activities. The MSC only certifies capture fisheries, and the GAA and the Aquaculture Stewardship Council (ASC) only certify aquaculture. With coffee, FLO has remained focused on small-farmer cooperatives, excluding plantations from eligibility.

The following discussion examines the institutional constraints and actor preferences that shaped these domain and scope specifications.

3.1.1. Institutional constraints

There were several ways in which the choices of scope and domain were linked to existing institutional structures. First, these initiatives were affected by the existing definitions of sectors, which are shaped by government polices, programs, and departments, as well as the holdings of companies, technologies for extraction, cultivation, production and transportation, professional associations, and educational programs. For instance, the GAA was launched during a meeting of the World Aquaculture Society in 1997, which is a society comprising scientists and representatives of the aquaculture industry (Christensen 1997). Similarly, many universities have separate agriculture and forestry departments, which reinforce the divisions between these fields of practice, rather than highlighting overlaps and interactions.

Second, existing standards also served as templates for what should constitute the appropriate policy focus of certification standards. With the MSC, the drafters of the principles and criteria drew from existing and developing standards including the Food and Agriculture Organization's (FAO) *Code of Conduct for Responsible Fisheries*, the UN Fish Stocks Agreement, and the *Principles for the Conservation of Wild Living Resources* (Sutton 1996; OECD 2005). Those involved in drafting the Forest Stewardship Council (FSC) principles and criteria used the International Tropical Timber Organization's (1992) *Guidelines for the Sustainable Management of Natural Tropical Forests* as a reference point for their work (Synnott 2005). FLO built its standard from long-standing ideas of fair trade used by alternative trade organizations.

Third, the choices of program founders were also shaped by what government policies and programs and other initiatives were already addressing. In this way, certification emerged to fill legal or policy gaps. As an example, with forestry, two problems were particularly salient in the late 1980s. The first concerned the release of toxic chemicals as a by-product of pulp and paper production processes (Harrison 2002). The second involved the degradation and loss of intact forests – commonly referred to as old growth – around the world (Humphreys 1996). Both issues sparked international campaigns calling for product boycotts (Stanbury 2000), and yet when it came to the development of forest certification, the focus narrowed to forest management issues, not the life cycle of a given wood product or other concerns, such as worker safety in manufacturing facilities. As one FSC founder explained: "we felt there was a real gap on the forest management side and there were potentially other tools to deal with workers' rights, to deal with environmental impacts of processing, whether those were eco-labels or some of the ISO standards."[4]

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3.1.2. The character, capabilities, and preferences of actors

Within the context of the above constraints, the preferences of actors involved in forming certification initiatives also mattered for the policy focus of different initiatives.

With the MSC, Unilever and the World Wide Fund for Nature (WWF) were key. That Unilever chose to work with WWF underscores the strength of the actor-centered perspective. Prior to working with the WWF, Unilever had been under pressure from Greenpeace, which began an oceans campaign in 1996. The group's campaign against industrial fishing in the North Sea led both Unilever and Sainsbury's to commit to ending their use of fish oils and meals from North Sea fisheries (Brown 1996). Rather than work with Greenpeace on a fisheries sustainability initiative, however, Unilever was advised that WWF would be a more amicable partner (Hamprecht 2005). Taking this path, the two organizations worked to create a certification program modeled after the FSC. Each partner came with different preferences and capabilities. The WWF had already been involved in founding the FSC, and saw a similar program for seafood as a key strategic component of its "endangered seas campaign" (Flanders 1998). Unilever, for its part, had been receiving scientific advice on the sustainability of fish stocks in the North Sea, which were a concern for its long-term supply (Hamprecht 2005, p. 100). Though by no means dictating the policy focus that the MSC took, the preferences of these two organizations did affect the subsequent process for drafting the MSC standards.

Fair trade programs that developed in various European countries in the late 1980s and early 1990s, and eventually cooperated to produce FLO, also illustrate the effects of founders' preferences. Many of the national labeling initiatives emerged with support from development assistance organizations, such as Oxfam, which had clearer expertise and interest in the social concerns and saw specialized attention to these issues as appropriate for fair trade certification. Indeed, those groups that set up the UK Fairtrade Foundation took cues from the success of eco-labels developing at the end of the 1980s, but saw their role as creating an ethical-trade equivalent (Jack 1990). In this case, it also appeared to specifically influence the domain of the program, as it applies to coffee, restricting it to small-farmer cooperatives and excluding plantations.

Capabilities have been another consideration of certification founders. There were at least two ways in which this shaped program choices. The first concerned expertise. Although good reasons might have existed for developing a standard with a scope broad enough to encompass interactive effects, founders may have lacked the capabilities to undertake such a project. As one FSC founder explained: "[we] thought it was probably overly ambitious to try to cover, you know, the full life cycle of wood from forests to recycling to bin, or whatever it might be, and that there were other players that were already covering some of that territory, so we didn't think it was totally necessary."[5] Similarly, certain programs were very aware of the specialization–comprehensiveness trade-off and chose to err on the side of specialization, partly as a consequence of considering capabilities. During the meetings held to draft the MSC principles and criteria, five principles were initially under consideration, one of which dealt with social issues. However, this principle was eventually dropped, in part because there was a perception that the MSC could not solve all marine fish issues, and that dealing with fish stocks and biology alone was important and complicated enough.[6] This choice to remain specialized also shaped the MSC's ongoing deliberations about whether or not it should address aquaculture. It ultimately decided only to work on capture fisheries (Bedrosian 2008).

3.2. Balancing and managing the specialization–comprehensiveness trade-offs

A major concern about creating specialized certification programs lies in their potential inability to adapt over time. If programs are highly flexible – or there is little inertia associated with their

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Table 2 Existing strategies of certification programs to address issue boundaries

Strategy	Character of coordination	Examples
Altering program domain or scope	None; can be done by one program	IFOAM and FLO developing social and environmental standards respectively
Extending to new products ("modular approach")	None; can be done by one program	IFOAM and FLO extending program to new products
Bilateral coordination	Medium; two programs develop joint approach to tackle shared problem	MSC and Soil Association working together on sustainable fish feed for aquaculture
Multilateral coordination	High; more than two programs develop joint approach to tackle shared problems	ISEAL Alliance's work on Codes of Good Practice
Supra-sectoral governance	High; involves separate coordination body	Hypothetical proposal for "Better World" label†

†As proposed by Cashore (2008).
FLO, Fairtrade Labelling Organizations International; IFOAM, International Federation of Organic Agriculture Movements; ISEAL, International Social and Environmental Accreditation and Labeling; MSC, Marine Stewardship Council.

initial decisions – they should easily be able to develop coordination strategies to address any problem and/or policy interactive effects arising from their initial policy focus. Coffee, forest, and fisheries certification programs have adopted several strategies partly intent on addressing these challenges. Five strategies that stand out are presented below in order of increasing levels of cross-program coordination (Table 2).

3.2.1. Altering program domain or scope

A first strategy involves changing program requirements, either by modifying the domain of eligible participants or by changing the scope of standards, such that an individual program can deal with some problem and/or policy interactive effects. Two notable illustrations of this strategy are the choices of IFOAM and FLO to extend the scope of their respective standards. IFOAM added requirements for social performance and FLO added basic environmental standards. Each change was partly in reaction to the growing awareness of the interlinkages among social and environmental issues in production practices (Raynolds *et al.* 2007; Courville 2008).[7] In a different manner, the Smithsonian Migratory Bird Center (SMBC) has also tackled a problem interactive effect. It requires that any coffee farmer that wants to be certified "bird friendly" must also pass an inspection against the US Department of Agriculture organic standard (SMBC 2002). This requirement avoids the program having to develop its own standards to address the use of pesticides or other farm practices, which may also affect the quality of bird habitat on coffee farms. In this respect, each program has taken individual actions to address problem interactive effects.

The FSC, on the other hand, provides an example of unilateral action to address a policy interactive effect. When the program launched, it had a policy to only allow products with 100 percent FSC content to carry its label. By adopting this policy, the FSC lacked a means to accommodate recycled fiber when promoting responsible paper products. Because recycled paper already existed in the market place, the policy had the potential to create confusion over the merits of fully certified paper versus recycled paper, and it also potentially penalized

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operators that were already far along in using recycled content. Indeed, were they intent on using the FSC label, it might mean they would use harvested fiber over recycled fiber, a negative interactive effect of this FSC content policy.

Changes to the content policy have allowed products with mixed content to carry the label, and in 2004, the FSC began permitting products made with 100 percent post-consumer recycled fiber to carry its label (Auld 2006). These changes, while mitigating the negative policy interactive effects, have also increased FSC's administrative complexity. The new content policy also created new interactive effects. Certifiers had to ensure that non-FSC content in labeled products did not contain wood from controversial sources, such as timber coming from illegal logging, which would have been automatically excluded under the earlier 100 percent content rule.

3.2.2. Extending to new products

A second strategy – a modular approach – involves extending the principles of the program by developing standards for new product groupings. Here the scope of a program's standards may remain largely the same, but the program extends its domain by making a new group of operators eligible. IFOAM has used this approach most extensively, and it is usually a two-step process. First, one of the many individual certifiers accredited to assess organic practices develops a new organic standard for a new sector, often responding to interest from producers seeking coverage by an organic label. Soil Association, Naturland, and Bio-Gro, for instance, did this with aquaculture (Tacon & Brister 2002). Second, once these standards are in place and certifications are underway, IFOAM typically will develop a general standard for the sector to guide future certifications. For instance, the Soil Association began drafting aquaculture standards in 1989, and IFOAM adopted a basic standard for organic aquaculture in 2005 (Auld 2009). Organic coffee certifications were occurring even before IFOAM was established; it then took until 1995 for IFOAM to issue a basic coffee standard (Linton 2005). FLO, by comparison, began by relying on its national labeling initiatives – of which there are currently 19 – to do the initial work developing new product standards. This preliminary work then underwent an approval and assessment process administered by FLO's standards committee.[8]

Other programs, including the FSC, GAA, Utz (a program that began by certifying coffee farmers, see Table 1), and the Rainforest Alliance, have also adopted this modular approach. For instance, the FSC began following this approach with forest carbon accounting, considering the appropriateness of a "modular extension."[9] A September 2009 meeting of the Forest Carbon Working Group discussed a strategy for moving this forward. This included a review of the FSC system that would likely uncover needed "adjustments and amendments of the FSC components" to make the program appropriate for carbon accounting (FSC 2009).

Across the programs, this strategy has been used to address problem and policy interactive effects. In the forestry case, one perceived threat for certification was the effect forest carbon projects might have on forest ecosystems as a consequence of only considering the carbon-storing potential of the forests, while neglecting their other environmental and social benefits. By working with carbon-offset standards, the expectation is this negative policy interactive effect can be pre-empted. There are also problem interactions between climate change and forests (e.g. increased incidence of beetle outbreaks or changing inter-species competition as a result of an altered temperature regime or the CO_2-fertilization effect [Lewis 2006]). This makes the management of forests entwined with climate change mitigation and adaptation. With organics and fair trade, policy interactions can occur at the production or retail end. At the retail end, companies that are concerned about their overall social or environmental reputation can find a patchwork of organic or fair trade product offerings problematic, as labeling some products may

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have the negative effect of implying to consumers that other products are less responsibly produced.

3.2.3. Bilateral coordination

A third strategy involves bilateral coordination between certification programs to address problem and/or policy interactive effects. Unlike the previous two strategies, here programs begin to build cross-program coordination mechanisms to facilitate ongoing work on common challenges, such as establishing joint decisionmaking protocols and operational procedures. These interactions may build from previous informal interactions. For instance, one FLO official explained that they had, for a long time, attended BioFach – an organic trade fair – where they would interact with IFOAM. The two programs also held joint workshops.[10]

Bilateral coordination has become more formal as well. For instance, the FSC and FLO began work in 2009 on a fair trade standard for forest management. Participants in the program must already be FSC certified, and then FLO will develop a standard for timber that adds fair trade considerations not covered by the FSC, including a modified version of the price-premium requirements (FLO 2010). Through a pilot project, a community forest in Honduras and groups of small and low intensity producers in both Chile and Bolivia have received dual certification. Furniture procured from these forests reached German stores early in 2012 (FSC 2013).

A related form of coordination involves programs combining their services. For instance, the Soil Association worked with the MSC on sourcing MSC fishmeal as a way to ensure the environmental quality of feed used in organic aquaculture operations (Soil Association 2006). Here the two programs sought to avoid a potential negative policy interactive effect: growing demand for organic aquaculture might drive demand for unsustainably managed ocean-capture fisheries. The FSC's Forest Carbon Working Group also recognized the need for this kind of coordination (FSC 2009). In September 2012, following the release of a strategy paper on climate change engagement (FSC 2011), the FSC announced a memorandum of understanding with the Gold Standard (a certification program for voluntary carbon offset projects) (Gold Standard 2013) to assess an alignment of the two programs to provide certification for forest carbon projects (FSC 2012).

3.2.4. Multilateral coordination

Multiple programs can also coordinate to address problem and policy interactive effects. The mechanisms to make this possible become more complex as the number of programs increases. The previous three strategies imposed higher within-program administrative costs. Multilateral coordination creates new institutions to undertake these functions, imposing larger across-program coordination costs associated with joint decisionmaking and operations.

The best example of this strategy that currently exists is the International Social and Environmental Accreditation and Labeling (ISEAL) Alliance. Established in 2002, the Alliance brings together certification initiatives to advance their common interests, particularly around the methods for setting and evaluating social and environmental standards. By 2011, ISEAL had a budget of 1.3 million euros; a large proportion of these funds are dedicated to its coordination activities (ISEAL Alliance 2012b).

ISEAL focuses more on policy than problem interactive effects. For instance, its codes of good practice cover standard setting, impacts, and assurance,[11] with the intention of creating a common understanding among its members on these core and shared aspects of their initiatives. The policy interactions addressed here are those that emerge from inconsistent practices

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among similar certification programs, which can cause either consumer confusion or mistrust. ISEAL codes, in other words, are similar to the administrative policy developed by a government's central agencies that guide the actions of specialized departments and agencies on matters such as standard procedures for contracts, hiring and promotion, or procurement (Pal 2001).

Another example of ISEAL's work is facilitating more specific and focused coordination projects. The Social Accountability in Sustainable Agriculture project is a prominent example, which involved FLO, Social Accountability International, IFOAM, and the Rainforest Alliance's program. This project worked on the twofold aim of developing tools and guidelines to improve social audit practices in agricultural systems and driving convergence in the practices of the participating initiatives through mutual learning (Courville 2003).

ISEAL has, however, also begun to work more in the area of problem interactions. For instance, the fifth version of its standard setting code has two relevant sections (ISEAL Alliance 2010). First, for standard review and revisions, it guides programs to assess, at least every five years, whether the standard is still required (Sec 5.11.4).[12] Second, it guides programs to ensure they are not duplicating the work of another existing standard (Sec 6.6). Both of these provisions illustrate an attempt by ISEAL to begin to address both policy and problem interactive effects as they guide programs to consider what other existing programs are already covering or what problem gaps persist that their standards might usefully address. The guidelines on review and revision imply that some programs might recognize – through the revision process – that they are no longer necessary, or that, rather than expand their policy focus, they might usefully contract it to better complement other programs.

3.2.5. Supra-sectoral governance

The fifth and final strategy involves the creation of a supra-sectoral governance institution, which develops new criteria and draws on existing programs to address certain environmental or social performance issues.[13] Unlike the last strategy, here the main concern is addressing problem interactive effects. For ISEAL to become a supra-sectoral mechanism, therefore, it would need to create standards about joint certification processes equivalent to the bilateral relations discussed under the third strategy. For instance, it could formalize relations between the FSC and some of the agricultural programs to address the extra-sectoral pressures for forest conversion associated with palm oil and soy production.

A supra-sectoral mechanism would help account for the inter-issue causes that affect particular policy problems. Such an approach has been proposed by Cashore (2008), who suggests that leading certification initiatives could all come under a common "Better World" label that would work to expand the recognition and market uptake of the programs. However, to exemplify this strategy, the proposal would need to be modified to include mechanisms that address policy and problem interactive effects.

4. Toward improved issue-boundary management

The challenges certification programs face in deliberating the trade-offs between specialization and comprehensiveness are not new. Scholars of public administration and international relations have long examined this dilemma in relation to coordination within governments (Christensen & Lægreid 2007) and among the work of international organizations, programs, and convention secretariats (Young 2002; Gehring & Oberthür 2009; Oberthür 2009; Oberthür & Stokke 2011). What can certification programs learn from this research?

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4.1. Autonomous interplay management for private governance

First, the strategies identified above mirror four levels of international regime interplay management defined by Oberthür (2009). These are, first, at the highest level, "*overarching institutional frameworks* [require] decision-making beyond the interacting institutions (p. 375)." Second, "*joint interplay management* (p. 376)" involves institutions coordinating activities and developing joint rules to govern their interactions. Third, "unilateral management by individual institutions (p. 376)" captures independent activities performed by the interacting institutions that occur without any specific coordination. Finally, the fourth level involves governments, civil society organizations, businesses, and other actors engaging in "*autonomous management* efforts (p. 376)." For each level, Oberthür (2009) identifies two distinct modes of interplay. Regulatory interplay management entails defining rules to direct behavior, establishing regulatory authority, and, sometimes, implementing and enforcing rules to mitigate conflict. Enabling interplay management, by contrast, focuses on learning and capacity; it uses "communication, information and knowledge" and "the allocation of resources" to gain the support of actors, build capacity, and address knowledge barriers (p. 377).

There is clear overlap between these levels of interplay management and the strategies identified above. Overarching institutional frameworks are most closely captured by the supra-sectoral governance strategy. Joint interplay management encompasses the multi-lateral and bilateral coordination strategies. Unilateral management fits the modular approach and unilateral modifications by a program of its policy focus. Although Oberthür (2009) dismisses the fourth level from further analysis given its likely limited problem-oriented effects, a focus on autonomous management appears useful for private governance interactions. It directs attention to how networks of actors (i.e. governments, foundations, NGOs, businesses, etc.), not programs and their bilateral and multilateral interactions, might facilitate issue-boundary management.[14] This focus reveals two potential, and additional mechanisms for managing issue boundaries.

A *direct mechanism* would involve autonomous management that seeks to influence the coordinative behavior of private governance. This is consistent with Abbott and Snidal's (2009) discussion of orchestration; they argue "that states and IGOs [intergovernmental organizations] can (positively) and should (normatively) more actively support and steer [regulatory standard setting] schemes, embracing them as valuable components of the international regulatory system" (p. 511). The emphasis here, however, is different from a focus on how intergovernmental organizations can push participation in certification.[15] With issue-boundary management, the emphasis would need to be how orchestration – here termed autonomous management – can steer programs to address different and complementary policy foci. It would need to involve considering the trade-off between the internal administrative costs comprehensive programs entail and the across-program coordinative costs facing specialized programs, as well as how this trade-off relates to the extent of the policy and problem interactive effects at play. This direct approach could provide regulatory or enabling interplay management. For instance, direct efforts could work to ensure that program officials and stakeholders are aware of both problem and policy interactive effects and that these officials and stakeholders are motivated to address them. Research on public administration notes that ministers and public servants must have their performance evaluated on, and be rewarded for, working cooperatively with other specialized departments or agencies on policy problems that overlap their areas of concern (Boston 1992; Christensen & Lægreid 2007). Hence, funders, program members, and experts sitting on technical and advisory committees may be able to nudge programs to look to other certification initiatives with different policy foci with an eye to fostering coordination when it is necessary.

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An *indirect mechanism* would involve autonomous management such that the problem or policy interactive effects are identified, and maybe even addressed, parallel to and potentially independent from the certification programs. Here, enabling interplay management appears most relevant. Jungcurt (2011), for instance, shows how an expert network in the management of plant genetic resources facilitated less conflict between the International Treaty on Plant Genetic Resources for Food and Agriculture and the International Union on the Protection of New Varieties of Plants, whereby the concerns of both users and providers of these resources were accommodated within the international institutions. Although this case is rather specific, it lends support to the possible role of autonomous interplay management in identifying how networks of outside actors might influence program interactions.

Potential examples of enabling interplay appear to be occurring.[16] For instance, there has been a recent spate of assessment initiatives examining the effects of certification in practice. The Committee on Sustainable Assessment (COSA) began in 2005 with the aim of examining the effects of coffee sustainability initiatives (COSA 2011). One strong example of an enabling role is found in a recent report, lead-authored by COSA's executive director. The report, *Food and Agriculture: The Future of Sustainability*, included a section on agriculture governance. It identified six necessary institutional shifts, one of which was "Policies harmonized across sectors" that called for greater systematic harmonization of policies "across the agriculture, environment, energy and social development sectors, at local, national and international levels" (Giovannucci *et al.* 2012, p. 45). The report essentially highlighted the extensive problem and policy interactive effects within and beyond the agriculture sector that public and private governance systems need to manage.

It is important to note, however, that not all coordination is useful. Oberthür & Stokke (2011) caution that interplay management is different from Young's (2002) concept of clustering or political linkages. These latter concepts capture cases where international institutions are connected for political reasons, not because of any specific interaction among their rules or operations. The analysis above indicates there is a clear cost to opting for clustering when policy and/or problem interactive effects are low. In this case, clustering would place a program in quadrant B (see Fig. 1) and, hence, impose unnecessary administrative costs with no real potential to improve fit with the problem.

The advantage of a more fragmented approach is also supported by research on the challenges of building comprehensive regimes (Young 2002). The recent hurdles facing intergovernmental cooperation on climate change, for instance, have led several scholars to investigate how the collective outcomes of many fragmented activities might lead to better problem-oriented results (Hoffmann 2011; Keohane & Victor 2011). Unlike the public administration analogy, certification programs face similar participation and compliance problems to government-negotiated international regimes. Thus, how the problem of fragmentation intersects with garnering fuller participation and more complete compliance is a key concern for both.

4.2. Path dependence in early policy focus

A second lesson concerns path dependence and institutional change. Work in public administration and international relations notes that organizational structures can become path dependent, restricting future reforms that might improve organizational effectiveness (Keohane 1988; Kavanagh & Richards 2001). Some features of certification may be stickier than others, and this has consequences for whether or not it is advisable that individual programs work together to address problem and policy interactive effects.

From the above analysis, one sticky facet of certification programs seems apparent: governance: in particular, which actors have influence over a program's policy focus and the degree of

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discretion actors have in interpreting and enforcing rules. These two points are informed by Mahoney and Thelen's (2010, pp. 16–29) theory of institutional change that identifies three variables: the strength of veto possibilities, the level of discretion in interpreting and enforcing rules, and types of change agents. With strong veto possibilities and low discretion for interpreting and enforcing rules, for instance, the model predicts that actors opposed to preserving the institution, but that follow its rules (i.e. subversives), will seek to add new rules to the institution (i.e. layering). With weak veto possibilities, low discretion means actors that do not seek to preserve the institution nor follow its rules (i.e. insurrectionaries) will aim to replace the existing institution's rules with new ones (i.e. displacement). Applying this to certification implies that decisionmaking approaches will matter because they affect which actors have veto power within a certification program. This means the strength of the veto options for actors and actors' latitude in interpreting and enforcing rules should shape the possibilities for changes to a program's policy focus (cf. Auld 2009).

Based on the above analysis, certification programs appear reasonably proficient at managing policy and problem interactive effects by altering their domain and scope or by devising relations with other programs. All of these cases constitute layering: new rules are introduced while existing rules remain intact (Mahoney & Thelen 2010, p. 16). The work of multilateral coordination is also relevant here. For instance, as noted above, ISEAL's Standard Setting Code guides its members to review and potentially revise their standards every five years and that this review should include an assessment of the continued need for the program based on evaluations of the programs' impacts (ISEAL Alliance 2010). ISEAL is also specifically encouraging programs to coordinate when drafting or revising standards. It notes: ". . . a standard-setting organization shall inform organizations that have developed related or similar international standards of the proposal to develop a new standard or revise an existing standard, and shall encourage their participation in its development" (ISEAL Alliance 2010, p. 16). This case is better captured by displacement: where old rules are replaced by new ones (Mahoney & Thelen 2010, p. 16). This implies that certification programs are collectively managing issue boundaries in a way that appears to mitigate potential path dependence on the narrow concern of policy focus.

Beyond this tentative conclusion, applying the above model sheds light on possible explanations for the actions of individual certification programs facing pressures to coordinate with other initiatives. For instance, Fair Trade USA recently ended its FLO membership in part because it wanted to expand the domain of fair trade coffee certification to encompass coffee plantations (Fair Trade USA 2011). The above model would explain this action as a product of limited discretion in interpretation and enforcement of rules and weak veto possibilities for Fair Trade USA within FLO. Hence, the character of governance – particularly what actors have veto power in a given certification program and what level of discretion is available in enforcing and interpreting rules – appear to be critical variables that will affect the evolution of the policy focus of private governance, and by extension, how issue-boundary management will be handled.

5. Conclusions

This paper advances a perspective on private governance, and certification in particular, that complicates the view that these initiatives enhance global governance by sidestepping the problems of interstate cooperation. By creating new boundaries at the intersection and margins of the policy issues programs address, new coordination challenges emerge. A few conclusions follow from the analysis.

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First, the assessment suggests that fuller coordination will require more efforts on the final two strategies – such as the work of ISEAL – in order for programs to tackle problem interactive effects that are central to the challenges of land-use change and climate change. That programs with dissimilar policy foci have found ways to work together on various issues highlights that coordination costs are not unreasonably high. In some instances, they have been avoided altogether, as programs have acted on their own to address problem and policy interactive effects. In other instances, reasonably simple bilateral arrangements have been formed to overcome boundary issues. However, future research should carefully assess how the costs of unilateral and bilateral coordination compare to the costs of a comprehensive approach and whether the former are only possible, and even feasible, for particular types of policy and problem interactive effects. If this is the case, certain issues may remain poorly addressed or neglected altogether by emerging private governance initiatives.

Second, coordination is not always beneficial nor is it necessarily the most critical challenge facing the problem-oriented effects of certification programs. Always seeking coordination is not advisable. Competition among certification programs likely broadens the use of certification within any given global governance issue area, and coordination among these programs could lead to the adoption of lowest-common-denominator standards. Additionally, as certification programs do not cover all production practices, and may never do so, this incomplete coverage may overshadow and obscure the costs of the policy and problem interactive effects. Hence, future attention to this challenge and how these programs interact with intergovernmental processes seem particularly important.

The analysis nevertheless identifies a facet of certification in particular, and private governance more generally, that has received insufficient examination by those studying the governance potential of these initiatives. Understanding and considering how issue boundaries shape the effectiveness of private governance is an important additional evaluation criterion. From a research perspective, it also recasts these initiatives in a way that lessens their distinctiveness from other governance mechanisms, such as inter-governmental organizations and governmental departments. This recasting opens up more possibilities for understanding the potential and the limitations of these initiatives through comparison with these more thoroughly studied and understood organizational units.

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Notes

1 This distinction is adapted from Cutler *et al.* (1999).

2 Policy interactive effects are closely linked to literature on policy interactions (Sorrell & Sijm 2003; Flanagan *et al.* 2011) and policy mixes or bundles (Gunningham & Sinclair 1999).

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3 See Young (2002, p. 113) for a discussion of this trade-off as it applies to the development of international regimes.
4 Interview, FSC founder, 18 December 2007.
5 Interview, FSC founder, 18 December 2007.
6 Interview, WWF official, 20 July 2007.
7 Programs may pursue this strategy for other reasons, including competitive pressures from initiatives that have a different policy focus, but operate in the same issue area. I thank a referee for noting this important point.
8 The system of national initiatives has undergone changes, with FLO introducing national marketing initiatives that promote fair trade sales, rather than oversee licensing and investigate and propose standards for new products. The first marketing initiative was formed in South Africa (FLO 2009a,b).
9 FSC began considering carbon back in 1999, but the work was not formalized until a policy motion at the 2008 General Assembly (FSC 2008).
10 Interview, FLO official, 17 March 2007.
11 ISEAL defines assurance as: "Demonstrable evidence that specified requirements relating to a product, process, system, person or body are fulfilled (adapted from ISO 17000)" (ISEAL Alliance 2012a, p. 5).
12 This is also to be based on monitoring and evaluation information on the effectiveness of the program detailed in the ISEAL Impacts Code (ISEAL Alliance 2010).
13 This strategy is different than Kooiman's (1999) concept of meta-governance, which focuses on the "broad principles that concern the way governance itself [. . .] takes place" (p. 78). Rather, the concerns of this strategy and the multilateral coordination strategy are not limited to principles, but also involve specific approaches meant to counteract the negative consequences of problem and policy interactive effects that occur at the level of day-to-day activities (i.e. what Kooiman terms first-order governance).
14 This strategy is consistent with Bartley's (2007a) discussion of foundations' role in building the field of forest certification, yet here foundations would use their influence to manage issue-boundary challenges among programs across issue areas.
15 Abbot and Snidal (2009) do state that "IGOs could develop coordinated criteria for acceptable principles, structures, and procedures in their areas of concern . . ., such as the ISEAL Code of Good Practices or the pending ISO social responsibility standard" (p. 576). However, nothing specific is offered on how this form of orchestration might address coordination across issue boundaries.
16 There are indications of this enabling role in the work of the ISEAL Alliance. A considerable amount of its work focuses on communication, information sharing, and learning. However, this role would be covered by the multilateral coordination strategy, not via autonomous interplay management.

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